



CHAPTER xiii.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty-five to the thirtieth day of September one thousand nine hundred and forty-six and for other purposes.

[15th June 1945.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council ^{2 & 3 Geo. 5.} (Finance Consolidation) Act 1912 as amended or extended by ^{c. cv.} subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period") :

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty-five regulated by the London County Council (Money) Act 1944 :

^{7 & 8 Geo. 6.}
^{c. xi.}

And whereas emergency provisions were enacted in the London ^{3 & 4 Geo. 6.} County Council (Money) Act 1940 (hereinafter referred to as ^{c. xxii.} "the Act of 1940") with reference to the expenditure of money on capital account and the lending of money by the Council for any purpose arising out of war damage or in connection with measures rendered necessary or expedient by the existence of a state of war in addition to the amounts specified in any annual money Act :

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty-five to the thirtieth day of September one thousand nine hundred and forty-six (hereinafter referred to as "the financial period 1945-1946") otherwise than under the said provisions of the Act of 1940 should be regulated as by this Act provided :

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1945-1946 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council :

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1945-1946 are set out in Part I of the schedule to this Act :

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1945-1946 are set out in Part II of the said schedule :

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1945-1946 are set out in Part III of the said schedule and it is expedient that the provisions contained in this Act for enabling the Treasury to increase the sums so set out should be enacted :

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1944 authorised to expend or lend but were not before the first day of April one thousand nine hundred and forty-five expended or lent :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the London County Council (Money) Act 1945 and shall be read and have effect as one with the principal Act.

2. In and for the purposes of this Act—

Interpreta-
tion.

“ the Council ” means the London County Council ;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act ;

“ the Act of 1940 ” means the London County Council (Money) Act 1940 ;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty-five to the thirty-first day of March one thousand nine hundred and forty-six both dates inclusive ;

“ the following six months ” means the period from the first day of April one thousand nine hundred and forty-six to the thirtieth day of September one thousand nine hundred and forty-six both dates inclusive ;

“ the financial period 1945-1946 ” means the financial year and the following six months ; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1945-1946 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure
on capital
account
during
financial
period
1945-1946.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

4. The sums which during the financial period 1945-1946 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to such bodies and persons respectively.

Amount
authorised
to be lent to
and borrowed
by local
authorities
and others
during
financial
period
1945-1946.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period

Amount of
further
expenditure
and loans
which
Treasury

may
authorise
in case of
insufficiency.

1945-1946 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule :

Provided that the amounts so specified may be increased by the Treasury to such extent as they think proper but that any minute of the Treasury authorising such increase shall be laid before Parliament as soon as may be after it is made and if either House of Parliament within the next twenty-eight days on which the House has sat after such a minute as aforesaid is laid before it resolves that the increase be annulled the minute shall thereupon cease to have effect except as respects things previously done but without prejudice to the issue by the Treasury of a new minute.

Periods for
repayment of
loans to
certain
bodies and
persons.

6.—(1) Any money lent by the Council to governors or managers of educational institutions (including special and approved schools) or to committees of school treatment centres or to governors or committees of voluntary hospitals and hostels in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

2 & 3 Geo. 6.
c. 31.

(2) Any money lent by the Council to any bodies or persons in pursuance of the provisions of the Civil Defence Act 1939 shall be repaid to the Council within a period not exceeding ten years as prescribed by that Act.

Saving for
emergency
provisions of
Act of 1940.

7. Nothing in this Act shall alter or affect the operation of section 7 (Emergency expenditure or lending for war damage &c.) of the Act of 1940.

Saving for
emergency
powers of
Treasury.
2 & 3 Geo. 6. c. 62.
3 & 4 Geo. 6. c. 20.

8. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

Application
of Local
Authorities
Loans Act
1945.
8 & 9 Geo. 6
c. 18.

9. After the coming into operation of the Local Authorities Loans Acts 1945 it shall not be lawful for the Council to exercise for the purposes mentioned in this Act the powers of borrowing conferred by the principal Act otherwise than in compliance with the provisions of the said Act of 1945.

The SCHEDULE referred to in the foregoing Act.

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1945 TO 30TH SEPTEMBER 1946 FOR CAPITAL EXPENDITURE.

(1) Acts for the Purposes of which Money may be expended.	(2) Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			(6) Estimated Requirement for Year ending 31st March 1946.	(7) Estimated Requirement for Six Months ending 30th September 1946.
		(3) Total Parlia- mentary Estimate.	(4) Expendi- ture to 31st March 1945 (Approximate).	(5) Revised Estimate where necessary.		
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 52,285	£ 2,230
2. Local Government Act 1888 and sundry Acts relating to bridges.	Acquisition of property in connection with construction of new Wandsworth Bridge.	*	—	—	£110	—
3. London County Council (Tramways and Improvements) Act 1920.	Construction of new Waterloo Bridge Acquisition of property in connection with widening of Cable Street.	* †595,500	— 305,688	— —	£7,040 £925	— —
	Carried forward	...	...	...	60,360	2,230

SCHEDULE—continued.

(1) Acts for the Purposes of which Money may be expended.	(2) Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			(6) Estimated Requirement for Year ending 31st March 1946	(7) Estimated Requirement for Six Months ending 30th September 1946.
		(3) Total Parlia- mentary Estimate.	(4) Expendi- ture to 31st March 1945 (Approxi- mate).	(5) Revised Estimate where necessary.		
		£	£	£	£	£
	Brought forward ...	...	...	...	60,360	2,230
4. London County Council (Money) Act 1930.	Repayment of local bonds for housing ...	*	—	—	300	—
5. London County Council (Vauxhall Cross Im- provement) Act 1931.	Acquisition of property in connection with street improvements at Vauxhall Cross.	617,000	206,941	294,000	\$2,035	—
6. London County Council (General Powers) Act 1934.	Acquisition of property and execution of works in connection with Westferry Road to West India Dock Road improvement.	†145,750	19,154	73,750	\$250	—
7. Housing Acts 1936 to 1944.	Acquisition of property erection of dwellings and other purposes.	*	—	—	†2,895,500	†1,770,000
	Advances to persons or bodies of persons ...	*	—	—	†1,000	†500
8. London and Middlesex (Improvements &c.) Act 1936.	Acquisition of property in connection with extension of Cromwell Road.	1,620,000	481,575	—	\$12,600	\$4,000
9. Public Health (London) Act 1936 and vari- ous Acts relating to main drainage.	Re-organisation of pumping machinery pro- vision of sewers and other purposes.	*	—	—	\$3,900	1,000

		2,107,000	255,201	—	\$86,240	\$18,000
10. London County Council (General Powers) Act 1937.	Acquisition of property in connection with improvements at Notting Hill-gate and Westminster Bridge-road and the Western-avenue extension between Edgware-road, and Marylebone-road.			—		
11. Green Belt (London and Home Counties) Act 1938 and Open Spaces Act 1906 etc.	Contributions towards the green belt scheme contributions towards cost of swimming pool.	*	—	—	218,860	50,000
12. London County Council (Tunnel and Improvements) Act 1938.	Acquisition of property for the improvement of the southern approach to Wandsworth Bridge.	†3,933,250	13,760	—	\$7,780	—
13. London County Council (General Powers) Act 1939.	Acquisition of property for the improvement of the south bank of the river Thames and at Millbank.	†1,702,000	202,488	—	15,280	—
14. London Government Act 1939.	Provision of accommodation for supplies department.	*	—	—	23,600	2,560
15. Any other Act ...	To provide for possible expenditure for purposes authorized by Parliament (whether before or at any time during the financial period) not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	*	—	—	500,000	250,000
					3,827,705	2,098,290

Carried forward £5,925,995

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

§ After allowing for contributions receivable by the Council.

† This figure includes the estimated cost of other purposes authorised by the same Act.

‡ In addition to the methods of raising money authorised by the principal Act the Council are empowered by virtue of section 122 of the Housing Act 1936 with the consent of the Minister of Health to raise by the issue of bonds any sums which they have power to borrow for the purposes of that Act.

SCHEDULE—continued

Brought forward £5,925,995

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and persons to whom money may be lent. (1)	During year ending 31st March 1946. (2)	During six months ending 30th September 1946. (3)
16. Metropolitan borough councils.	£ 1,000,000	£ 500,000
17. Governors or managers of educational institutions (including special and approved schools) committees of school treatment centres and governors or committees of voluntary hospitals and hostels.	1,000	500
18. Sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923.	1,000	500
Total	†1,002,000	†501,000
		£1,503,000

† The provision for advances to persons or bodies of persons under the Housing Act 1936 is included under item 7 of this schedule.

PART III.

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE.

Purposes. (1)	During year ending 31st March 1946. (2)	During six months ending 30th September 1946.. (3)
19. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule.	£ 2,000,000	£ 750,000
		£2,750,000

Carried forward £10,178,995

SCHEDULE—*continued*.

Brought forward £10,178,995

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1944 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1945 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	£ 14,187
2	Local Government Act 1888 and sundry Acts relating to bridges.	387
3	London County Council (Tramways and Improvements) Act 1920.	300
5	London County Council (Vauxhall Cross Improvement) Act 1931.	785
6	London County Council (General Powers) Act 1934.	100
7	Housing Acts 1936 to 1944.	1,905,747
8	London and Middlesex (Improvements &c.) Act 1936.	4,005
9	Public Health (London) Act 1936 and various Acts relating to main drainage.	2,007
10	London County Council (General Powers) Act 1937.	45,764
11	Green Belt (London and Home Counties) Act 1938 and Open Spaces Act 1906 &c.	194,000
12	London County Council (Tunnel and Improvements) Act 1938.	2,985
13	London County Council (General Powers) Act 1939.	5,865
14	London Government Act 1939.	25,183
15	Any other Act.	668,000
16	Loans to metropolitan borough councils.	1,500,000
17	Loans to governors or managers of educational institutions &c.	1,500
18	Loans to sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923.	1,500
19	General enlargement of spending and lending power under Treasury sanction.	2,750,000
		£7,122,315
		£3,056,680

SCHEDULE—continued.

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN
(FOR THE PURPOSES OF WHICH THE COUNCIL MAY
RAISE MONEY BY BORROWING OR OTHERWISE).

For Council	For year ending 31st March 1946.	£ 1,128,473	£
	For six months ending 30th September 1946.	1,928,207	
		3,056,680	
For loans	For year ending 31st March 1946.	nil	
	For six months ending 30th September 1946.		
			£3,056,680

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